

CHAPTER 7.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and Air Force, and to repeal certain provisions in section twelve of the Air Force (Constitution) Act, 1917.

[27th April 1920.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of five hundred and twenty-five thousand, including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of twenty-nine thousand seven hundred and thirty, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid, and the provisions of the Air Force Act are due to expire at the same dates as the provisions of the Army Act : 7 & 8 Geo. 5.
c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed, and that

persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air-force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

44 & 45 Vict.
c. 58.

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and twenty on the following days :—

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1920.

Army Act and
Air Force Act
to be in force
for specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :—

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and twenty to the thirtieth day of April one thousand nine hundred and twenty-one, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July one thousand nine hundred and twenty to the thirty-first day of July one thousand nine hundred and twenty-one, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

Prices in
respect of
billeting.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

Part I.—Amendments of Army Act.

4. The sections of the Army Act specified in the Second Schedule to this Act shall be amended in the manner shown in the second column of that schedule, with a view to including where necessary references to colonels commandant in references to general officers.

References to general officers to include colonels commandant.

5. Regimental courts-martial shall be abolished, and accordingly the provisions of the Army Act specified in the Third Schedule to this Act shall be omitted from the Army Act.

Abolition of regimental courts-martial.

6. At the end of paragraph (e) of subsection (2) of section one hundred and eighty of the Army Act (which relates to the powers of courts-martial in India), the following words shall be added :—

Amendment of s. 180.

“and in addition, if the court or authority thinks fit, to be severely reprimanded or reprimanded”.

Part II.—Amendments of Air Force Act.

7. At the end of subsection (1) of section forty-six A and of subsection (2) of section one hundred and eighty-three of the Air Force Act the following proviso shall be inserted :—

Amendment of s. 46A and s. 183.

“Provided that, where the Air Council in special circumstances so direct, any powers which under this provision may be exercised by an officer of air rank may be exercised by a group captain”.

8. In section eighty-four of the Air Force Act (which relates to the re-engagement of airmen) “twenty-four years” shall be substituted for “twenty-one years”.

Amendment of s. 84.

9.—(1) In section eighty-five of the Air Force Act (which relates to the continuance of service of airmen) “the total period of service for which he has re-engaged under the last preceding section of this Act” shall be substituted for “a total period of twenty-one years service”.

Amendment of s. 85.

(2) In the case of an airman who has re-engaged before the commencement of this Act, section eighty-five of the Air Force Act shall take effect as if it had not been amended by this Act.

10. Subsection (10) of section one hundred and fifteen of the Air Force Act (which relates to the sale and purchase of horses under a requisition of emergency) shall apply to aircraft as it applies to horses, and accordingly in that subsection after the word “horses” and after the word “horse,” wherever those words occur, there shall be inserted the words “or aircraft”.

Amendment of s. 115.

11.—(1) The sections of the Air Force Act specified in the Fourth Schedule to this Act shall be amended in the manner shown in that schedule, in view of the new designations of officers of the air force.

New designations for air-force officers.

(2) Any designation which in the said schedule is required to be substituted for any other designation shall be deemed to have been substituted for that designation in any Act, order, regulation or warrant passed or made before the passing of this Act and applicable to officers of the air force.

(3) The following subsection shall be substituted for subsection (46) of section one hundred and ninety of the Air Force Act :—

“(46) The expression ‘air officer’ means any officer above the rank of group captain.”

Part III.—Amendments of Army Act applicable also to the Air Force Act.

Amendment
of ss. 44 and
182

12.—(1) Section forty-four of the Army Act (which relates to punishments) shall be amended as follows :—

(a) After paragraph (m) there shall be inserted the following new paragraph :—

“(mm) In the case of a non-commissioned officer, reprimand or severe reprimand ”;

(b) In proviso (3), after the words “an officer,” there shall be inserted the words “or a non-commissioned officer”.

(2) Section one hundred and eighty-two of the Army Act (which relates to warrant officers) shall be amended as follows :—

In paragraph (a) of subsection two, the words “be reprimanded or severely reprimanded, or to” shall be inserted after the words “by a district court-martial to”.

Amendment
of s. 48.

13. In subsection (3) of section forty-eight of the Army Act (which relates to the constitution of general courts-martial) the words “in the United Kingdom, India, Malta and Gibraltar, of not less than nine, and elsewhere” shall be omitted, and for the word “five” where it last occurs there shall be substituted the word “four”.

Amendment
of s. 54.

14. In subsection (3) of section fifty-four (which relates to a finding of acquittal by a court-martial) the words “if it relates to the whole of the offences” shall be omitted where they at present occur, and those words shall be inserted after the words “in open court, and”.

Power to
suspend
sentences.

15.—(1) The following section shall be inserted after section fifty-seven of the Army Act :—

“57A.—(1) Where a soldier is sentenced to penal servitude, imprisonment or detention, the confirming authority to whom the sentence is submitted for confirmation may, when confirming the sentence, direct that the soldier be not committed to prison or detention barracks until the orders of a superior military authority have been obtained.

“(2) A superior military authority may in the case of any soldier so sentenced—

- (a) direct that a committal to prison or detention barracks shall not be issued until his orders have been obtained;
- (b) suspend the sentence whether or not the soldier has already been committed to prison or detention barracks.

“(3) Where a sentence of penal servitude, imprisonment or detention is suspended under this section before the soldier has been committed to prison or detention barracks, the soldier if in custody shall be released, and, notwithstanding anything in this Act, the sentence shall not begin to run until the soldier is ordered to be committed to prison or detention barracks under that sentence.

“(4) Where a sentence of penal servitude, imprisonment or detention is suspended under this section after the soldier has been committed to prison or detention barracks, he shall be discharged and the currency of the sentence shall be suspended from the day on which he is released until he is again ordered to be committed to prison or detention barracks under the same sentence.

“(5) Where a sentence has been suspended under this section, the case may at any time, and shall, at intervals of not more than three months, be reconsidered by a competent military authority, and, if on any such reconsideration it appears to the competent military authority that the conduct of the soldier since his conviction has been such as to justify a remission of the sentence, he shall remit it.

“(6) A superior military authority may, at any time whilst a sentence is suspended under this section, order that the soldier be committed to prison or detention barracks, and from the date of such order the sentence shall cease to be suspended.

“(7) Where a soldier whilst a sentence on him is so suspended is sentenced to penal servitude, imprisonment or detention for a fresh offence, a superior military authority may direct that the two sentences shall either run concurrently or consecutively, so, however, that the aggregate term of imprisonment or detention served under two or more sentences of imprisonment or detention shall not exceed two consecutive years; provided that, where the sentence for such fresh offence is a sentence of penal servitude, then, whether or not that sentence is suspended, any previous sentence of imprisonment or detention which has been suspended shall be avoided.

“(8) The powers conferred by this section shall be in addition to and not in derogation of any other powers as

to the mitigation, remission, commutation, or suspension of sentences conferred by this Act, and a superior military authority under this section shall be an authority having power to mitigate, remit, or commute sentences of penal servitude, imprisonment or detention under subsection (2) of section fifty-seven of this Act.

“(9) In this section—

The expression ‘superior military authority’ means the Army Council and any general officer or colonel commandant whom the Army Council may appoint for the purpose, or the officer in chief command of any force employed on active service beyond the seas, and any general officer or colonel commandant whom he may appoint for that purpose;

The expression ‘competent military authority’ means a superior military authority, or any general or other officer not below the rank of field officer duly authorised by a superior military authority.”

(2) This section shall, notwithstanding anything in section 4 Edw. 7. c. 5. fourteen of the Army (Annual) Act, 1904, come into operation, both in the British Islands and elsewhere, on the passing of this Act.

Amendment
of s. 70.

16. At the end of section seventy of the Army Act (which empowers His Majesty to make rules of procedure) there shall be added the following subsection :—

“(6) The rules as to the investigation of a charge may provide for a written summary of the evidence being taken on oath, and may empower a commanding officer or any officer, before whom he directs such summary to be taken, to administer oaths for that purpose”.

Amendment
of s. 81.

17. In section eighty-one of the Army Act (which relates to the power of a recruit to purchase his discharge), “twenty pounds” shall be substituted for “ten pounds”.

Amendment
of s. 104.

18. In subsection (1) of section one hundred and four of the Army Act (which relates to the premises liable to billets) the words “inns or hotels (whether licensed or otherwise)” shall be substituted for the words “inns, hotels”.

Amendment
of s. 124.

19. Section one hundred and twenty-four of the Army Act (which relates to the right of a person tried by a court-martial to a copy of the proceedings) shall be amended as follows :—

(1) After the words “finding and sentence of the court” there shall be inserted the words “or after his acquittal”.

(2) The following proviso shall be added at the end of the section :—

“Provided that, when any person tried by court-martial dies within the above-mentioned periods of

seven or three years, his next-of kin shall, within a period of twelve months after his death, have the same right to obtain a copy of the proceedings."

20. At the end of section one hundred and twenty-five of the Army Act (which relates to the summoning and privilege of witnesses at courts-martial) there shall be added the following subsection :— Amendment of s. 125.

"(3) For the purposes of this and the next succeeding section, the expression 'a court-martial' shall be deemed to include an officer taking a written summary of evidence in accordance with rules of procedure made under this Act; and references to the president or members of a court-martial shall be construed as including references to such officer."

21. The following subsection shall be inserted after subsection (4) of section one hundred and thirty-eight of the Army Act (which relates to penal stoppages from ordinary pay of soldiers) :— Amendment of s. 138.

"(4A) The share he is required to contribute as belonging to a unit towards compensation for barrack damage which after due investigation, to be held in the manner provided in the King's Regulations, appears to have been occasioned by the wilful act or negligence of a person or persons who cannot be identified, belonging to the unit, during the period while such unit was in occupation.

"For the purposes of this paragraph, the expression 'barrack damage' means damage to or loss or destruction of any premises in which soldiers are quartered or billeted or any appurtenances, fixtures, furniture or effects therein or appertaining thereto, and the expression 'unit' includes any part of a unit : "

22.—(1) Subsection (2) of section one hundred and forty-five of the Army Act (which relates to the liability of a soldier to maintain his wife and children) shall be amended as follows :— Amendment of s. 145.

The words from "where the soldier is a Warrant Officer (Class I.)" to the end of the subsection inclusive shall be omitted, and the following words shall be inserted instead thereof :—

"where the soldier is a Warrant Officer (Class I.) not holding an honorary commission—in respect of a wife or children, four shillings, and in respect of a bastard child, three shillings ;

"where the soldier is a Warrant Officer (Class II.) not holding an honorary commission, or a non-commissioned officer who is not below the rank of sergeant—in respect of a wife or children, two shillings and sixpence, and in respect of a bastard child, one shilling and sixpence ;

“in the case of any other soldier—in respect of a wife or children, one shilling and sixpence, and in respect of a bastard child, one shilling.”

(2) Where an order had, before the coming into operation of this section, been made under section one hundred and forty-five of the Army Act authorising deductions from pay, a further order may be made increasing the amount of the deduction to be made after the coming into operation of this section under the former order up to the limit authorised by this Act.

(3) This section shall, notwithstanding anything in section 4 Edw. 7. c. 5. fourteen of the Army (Annual) Act, 1904, come into operation, both in the British Isles and elsewhere, on the passing of this Act.

Penalty for interference with military duties, &c.

23. The following section shall be inserted after section one hundred and fifty-three of the Army Act :—

“ 153A. Any person who in the United Kingdom or elsewhere,

(a) wilfully obstructs, impedes, or otherwise interferes with any officer or soldier in the execution of his duties; or

(b) wilfully produces any disease or infirmity in, or maims or injures, any man whom he knows to be a soldier with a view to enabling such man to avoid military service; or

(c) with the intent of enabling a soldier to render himself, or induce the belief that he is, permanently or temporarily unfit for service, supplies to or for such soldier any drug or preparation calculated or likely to render him or lead to the belief that he is permanently or temporarily unfit for service;

shall be liable, on summary conviction, to a term of imprisonment for a term not exceeding six months or to a fine not exceeding one hundred pounds, or to both such imprisonment and fine.”

Amendment of s. 158.

24. At the end of subsection (1) of section one hundred and fifty-eight of the Army Act (which relates to liability to military law) the following words shall be added: “and the limitation of time imposed by this proviso shall not apply in the case of a person who has been attached to or seconded for service with His Majesty’s military forces and has ceased to be subject to military law by reason only of the termination of such attachment or seconding.”

Application of Part III. to air force.

7 & 8 Geo. 5. c. 51.

25. References in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and this Part of this Act shall, in its application to the air force, have effect subject to any of the general modifications set out in Part I. of the Second Schedule of the Air Force

(Constitution) Act, 1917, which apply, and also the following modifications :—

For references to—	there shall be substituted references to—
"general officer" - - - - -	"general or air officer"
"general officer or colonel commandant" -	"general or air officer"
"field officer" - - - - -	"squadron leader"
"army services" - - - - -	"air-force services"
"section fourteen of the Army (Annual) Act, 1904."	"this Act"
"His Majesty's military forces" - - -	"the air force"
"military law" - - - - -	"this Act"

REPEAL OF ENACTMENTS, &c.

26. The provisions of section twelve of the Air Force (Constitution) Act, 1917, and the other enactments specified in the Fifth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule : Repeal.
7 & 8 Geo. 5.
c. 51.

Provided that—

- (a) nothing in the repeal of the provisions of section twelve of the Air Force (Constitution) Act, 1917, shall affect the application of those provisions to amendments of the Army Act made before the passing of this Act; and
- (b) any sentence in force at the date of the commencement of this Act which has been suspended under the provisions of any enactment repealed by this Act shall be deemed to have been suspended under section fifty-seven A of the Army Act.

27. Amendments of the Air Force Act contained in this or any other Act continuing the Air Force Act shall come into operation in any place as from the date from which the Air Force Act is by this or such other Act continued in that place. Date on which
amendments
to Air Force
Act are to
come into
operation.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Tenpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army and Air Force Acts.	Tenpence each.
Dinner as so specified - - - - -	Two shillings.

Accommodation to be provided.	Maximum Price.
Supper as so specified - - - - -	Sixpence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	Three shillings per day.
Stable room without forage - - - - -	Sixpence per day.
Lodging and attendance for officer - - -	Three shillings per night.

Note.—An officer shall pay for his food.

Section 4.

SECOND SCHEDULE.

AMENDMENTS RELATING TO COLONELS COMMANDANT.

Section.	How to be Amended.
ss. 43 and 46 (1) -	After "general officer" there shall be inserted "or colonel commandant".
s. 46A (1) - - -	After "general officer" where those words first occur there shall be inserted "or colonel commandant".
ss. 46A (5), 73 (3), 74 (1), 177, 183 (2), and 189 (2), (3) and (4).	After "general officer" there shall be inserted "or colonel commandant".

Section 5

THIRD SCHEDULE.

PROVISIONS TO BE OMITTED IN CONNECTION WITH THE
ABOLITION OF REGIMENTAL COURTS-MARTIAL.

Section 47.

Section 54 (1) (a).

In section 182 (1) the words "nor tried by regimental court-martial."

In section 184 (1) the words "other than a regimental court-martial."

In section 184 (2) the words "or by a regimental court-martial."

FOURTH SCHEDULE.

Section 11

SUBSTITUTION OF NEW DESIGNATIONS.

The sections of the Air Force Act mentioned in the following table shall be amended by the substitution of the designations set out in the third column for those set out in the second column.

Section of Act.	Former Designation.	Present Designation to be substituted.
43	"captain" wherever that word occurs.	"flight lieutenant"
46 (1)	"prescribed general officer"	"prescribed officer"
	"field officer" - - -	"squadron leader"
	"a general officer" - - -	"an air or general officer"
46A (1)	"field officer" - - -	"squadron leader"
	"general officer authorised"	"air officer authorised"
	"officer (not under the rank of major-general)"	"air-force officer of air rank"
46A (5)	"a general officer" - - -	"an air or general officer"
48	"captain" wherever that word occurs.	"flight lieutenant"
48 (7)	"a field officer" - - -	"an officer of or above the rank of squadron leader"
48 (9)	"field officer" where that word first occurs.	"squadron leader"
	"a field officer" where that word occurs the second time.	"an officer of or above the rank of squadron leader"
49 (1) (c)	"captain" - - -	"flight lieutenant"
54 (1) (d)	"general field or flag officer"	"officer (not being below the rank of squadron leader, flag officer or field officer)"
73 (3)	"prescribed general officer"	"prescribed officer"
74 (1)	"general officer" - - -	"air officer"
108A (1)	"general or field officer" -	"officer not below the rank of squadron leader"
115 (1)	"general or field officer" -	"officer not below the rank of squadron leader"
122 (1)	"degree of field officer" -	"rank of squadron leader"
(c) and (e).		
122 (1) proviso.	"field officer" in both places where those words occur.	"squadron leader"
	"degree of captain" - - -	"rank of flight lieutenant"
122 (6)	"a field officer" - - -	"squadron leader"
123 (1) (b)	"captain" - - -	"flight lieutenant"
154	"general" wherever that word occurs.	"air"
172	"general or other" in both places where those words occur	"air or other"
173	"captain" - - -	"flight lieutenant"

Section of Act.	Former Designation.	Present Designation to be substituted.
177	"general officer" - - -	"air officer"
179A (2) (d)	"general or other" wherever those words occur.	"air or other"
182 (4)	"captain" - - - -	"flight lieutenant"
183 (2)	"any general or flag officer"	"any air, general or flag officer"
184 (2)	"general or other" wherever those words occur.	"air or other"
189	"general officer" wherever those words occur.	"air officer"

Section 26.

FIFTH SCHEDULE.

REPEALS.

Session and Chapter.	Short Title.	Extent of Repeal.
5 Geo. 5. c. 23	The Army (Suspension of Sentences) Act, 1915.	The whole Act.
5 & 6 Geo. 5. c. 103.	The Army (Suspension of Sentences) Amendment Act, 1916.	The whole Act.
7 & 8 Geo. 5. c. 51.	The Air Force (Constitution) Act, 1917.	Subsections (2) and (3) of section twelve and in subsection (4) of section twelve the words "the Army Act or," wherever those words occur and the words from "but as respects" to "as aforesaid."
9 Geo. 5. c. 15	The Naval, Military and Air Force Service Act, 1919.	Subsection (3) of section two.